

HCS HB 3392 -- PURCHASE OF DYED DIESEL FUEL FOR AGRICULTURAL PURPOSES

SPONSOR: Haley

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Agriculture by a vote of 21 to 0. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 9 to 0.

The following is a summary of the House Committee Substitute for HB 3392.

This bill specifies that no retailer or distributor of dyed diesel is financially liable for a consumer's on-road use of the dyed diesel fuel unless the retailer or distributor is criminally negligent. A retailer is not required to maintain a physical exemption certificate for sales of dyed diesel as long as the fuel is clearly labeled as required in the bill.

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPOSERS: Supporters say that this bill would remove unnecessary paperwork requirements for gas stations. Currently, gas stations are being penalized for not collecting Form 149s from customers purchasing dyed diesel but it should be the customer who is penalized if he or she uses the fuel for on-road vehicles.

Testifying in person for the bill were Representative Haley; Missouri Corn Growers Association; Missouri Soybean Association; Missouri Farm Bureau; Nicholas Lepper, Gier Oil Company Inc; and Missouri Petroleum & Convenience Association.

OPPOSERS: There was no opposition voiced to the committee.

OTHERS: Others testifying on the bill say technology has changed the way customers purchase fuel. Many purchases at gas stations are done without coming into the store, which makes it harder for gas stations to obtain a Form 149 for each customer of dyed diesel.

Testifying in person on the bill was Zachary Wyatt, Department of Revenue.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.